

TRIAL AND ERROR

After 14 long years, the historical Bombay Bomb Blast Case has come to a close. With 100 convictions, 12 death penalties and 20 life sentences, the case might have the highest conviction rate, but it leaves behind key questions.

The CBI's Chief Investigating Officer O.P. Chhatwal calls it a "copybook case". Never before in criminal history has a chargesheet run into 10,000 pages. And never has any other trial seen 3,000 witnesses, 100 convictions, of which 12 are death penalties and 20 life sentences. Says Nikam, "When the case began, it was nearly impossible to establish where it started till we managed to turn two of the accused—Mohammad Jameel and Mohammad Usman Jan Khan—into approvers." The sentences have been given on the basis of the confessions of the accused and the co-accused, as the plot was hatched behind closed doors: in this case, the doors of Al-Hussaini Building, the residence of the Memons, the key conspirators. However, questions are being raised over the alleged pact between CBI and the Memon family. Rumours are rife that Yakub Memon made a deal whereby CBI was to be lenient to him if he cooperated. Chhatwal, however, denies this.

The Pakistan connection is clear from the confessions, with many of the approvers admitting to weapons training there. Says Nikam: "We have established that ISI was involved. The people who got weapons training were escorted by Pakistani officials from Dubai to Islamabad." Once the two accused started singing, the Mumbai Police and CBI put the plot into place. The conspiracy was spearheaded by Tiger Memon who garnered the support of enraged Muslims after the fall of the Babri Masjid. Within weeks, over 170 people were rounded up and taken into custody and 27 cases were filed. The investigating agencies recovered arms and explosive material in 33 places in Maharashtra and elsewhere.

The most incriminating evidence was the Arches grenades, manufactured in 14 Ordinance Factory, which were recovered in Mumbai. The grenades, which were part of the con-

signment that landed in Maharashtra prior to the blasts, were manufactured in Pakistan. Yet, despite ISI having provided weapons training to Indian Muslims with the intention of causing mass killing, charges of waging a war against India were dropped from the chargesheet in 1994. Chhatwal says, "Taking into consideration the law prevailing at that time and the ingredients

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DESTRUCTION: The case shows the ISI was behind the blasts

of Section 121 of IPC, the prosecutors conducting the trial were of the view that this charge may not sustain and this was agreed upon by the designated court." Other investigating officers now admit dropping the charge was a mistake. The Supreme Court has, in other cases, held that acts of terrorism can amount to waging of war. In fact, Kode, while announcing death sentences in connection with the Mahim fishermen colony blast, stated: "This is an offence of the highest degree and synonymous to waging war."

Though hearings in the trial had ended by September 2003, the case

was in limbo till Abu Salem, former Dawood gang member and key accused, was extradited from Portugal in November 2005. With 100 out of the 123 who were tried being convicted, this is the highest conviction rate in any case. Maneshinde admits, "There is no precedent to this case, as never before have so many people been tried together, nor has the rate of conviction been so high."

As the trial closed on July 31, it left behind many questions. Anybody who has sat through the proceedings can see that the religious divide is only getting deeper. The day he was awarded the death sentence, Zakir Hussain shouted: "This is wrong.

Muslims will always be hanged. Our houses and shops were looted and yet, we are being hanged. What kind of justice is this?" Defence lawyer Farhana Shah says almost all the accused "were victims of the prevailing circumstances in the city after the Babri Masjid was destroyed. They were incited into doing these things."

However, Nikam feels that since the accused have been held guilty, they are using the communal card. Shah says they will appeal in the Supreme Court against the sentences, perhaps recalling the Rajiv Gandhi assassination case, where the 26 accused, who were sentenced to death by a TADA court, were acquitted by the apex court.